

LAM16K01679 LAM16K01679

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-03

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Case Number: LAM16K01679 Hearing Date: September 3, 2026 Dept: 26

TENTATIVE RULING:

Judgment Debtor DeAundrey J.

Wattree's Motion to Modify or Vacate

Renewal of Judgment is continued to 10/15/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 09/17/2026, Judgment Debtor is to file proof of service of the Motion and Notice of New Hearing Date, in accordance with the statutory requirements. Failure to do so may result in the Motion being denied.

Analysis:

On February 8, 2016, Safeway Insurance Company ("Judgment Creditor") filed the instant action against DeAundrey J. Wattree ("Judgment Debtor"). Judgment Creditor obtained a default judgment on July 15, 2016 and the judgment was renewed on June 29, 2026.

Judgment

Debtor, in propria persona, filed the instant Motion to Modify or Vacate

Renewal of Judgment on August 7, 2026. However, the Motion is not accompanied by a proof of service of the moving papers or notice of hearing. Failure to give notice of a motion is a violation of the statutory requirements and of due process. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.)

The

Court cannot grant the Motion and declines to consider the merits without a proper showing of notice upon Judgment Creditor. The hearing is continued to allow Judgment Debtor to serve Judgment Creditor with the Motion and Notice of Hearing and file proof of service of the same, in accordance with the Code of

Civil Procedure.

Conclusion

Judgment Debtor DeAundrey J.

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Judicial Assistant to give notice.